

premises then by posting and mailing. (Code Civ. Proc., § 1162, subd. (a)(1)–(3).) The initial complaint in this action provided the 3-day notice to pay or quit as Exhibit 2 with an attached proof of service showing service by posting only on March 5, 2026, which is not a permissible method of service. Plaintiff has attempted to address this issue by filing the FAC—the operative pleading—which now shows posting and mailing on March 5, 2026. However, this document remains signed under penalty of perjury on March 5, 2026—meaning that changes were made to this document after it was signed under penalty of perjury and no new signature was provided. For this reason, the proof of service attached to the 3-day notice fails to show proper service within the meaning of Code of Civil Procedure section 1162. For this reason, the demurrer is sustained.

In reviewing the FAC, the court also observes several instances where the allegations are incomplete (item 6a is blank, item 6d does not specify any changes in the monthly rental amount) and conflicting or confusing (item 8b specifies the tenancy was terminated for no-fault just cause, but the 3-day notice is for failure to pay rent). Moreover, the 3-day notice indicates rent is past-due at a rate of \$1,099 per month; however, item 6a(2) specifies a rate of \$1,095 per month. Comparing these allegations, it appears the 3-day notice may overstate the amount of rent due and, if so, would render the 3-day notice void.

Plaintiff is afforded leave to amend and shall file and serve a second amended complaint, if any, by May 18, 2026.

#### Motion to Strike

Defendants’ motion to strike portions of the first amended complaint is denied as moot in light of the court’s above ruling sustaining the demurrer to the first amended complaint with leave to amend.

### **6. S-CV-0046823 Casey, Michael P v. Patrick, Sean**

#### Motion to Correct Clerk’s Record

Plaintiff’s motion to correct clerk’s record filed April 13, 2026 is denied without prejudice as there is no evidence in the court’s file this motion was served on defendant.

#### Motion to Correct Clerk’s Record

On April 21, 2026, plaintiff filed a motion to correct clerk’s record pursuant to Code of Civil Procedure section 399 and 473(d). No opposition has been filed.

Plaintiff describes the procedural history of this case, which is verified by a review of the court’s file, that while the action was initially filed in Sacramento County, it was subsequently transferred by the Sacramento County Superior Court to the Placer County Superior Court. Placer County Superior Court received the transfer on June 10, 2021, filed each individual document into its electronic case file, and issued a notice of receipt

of transfer served on all parties as required by Code of Civil Procedure section 399(b). It is important to note that each document originally filed in Sacramento County and then transferred to Placer County bears the original file-stamp from Sacramento County and the June 10, 2021 file-stamp from Placer County.

Plaintiff understands Section 399's requirement that the court "shall have and exercise over the action or proceeding the like jurisdiction as if it had been originally commenced in that court, all prior proceedings being saved" means that the transferee court must file-stamp all documents the same date that they were file-stamped by the transferor court. The court has searched but is unable to find any legal authority interpreting this language the way plaintiff does, nor has the court located any legal authority that would permit the transferee court clerk to file-stamp a date prior to the date of transfer. Plaintiff has failed to show a clerical error in need of correction within the meaning of Code of Civil Procedure section 473(d).

The motion is denied.

**7. S-CV-0050791 Conrad, Ethan v. Gill, Manpreet**

Plaintiff's motion for attorneys' fees and prejudgment interest is continued to be heard on **July 14, 2026 at 8:30 a.m. in Department 42**. Plaintiff seeks an award of attorneys' fees as prevailing party after the court granted plaintiff's motion for summary judgment. (Ruling on Submitted Matter, Dec. 8, 2025.) However, there is no evidence plaintiff served the notice of entry of order on defendant. Moreover, plaintiff has not submitted any proposed judgment to the court. Plaintiff is directed to forthwith file and serve a notice of entry of order for the court's December 8, 2025 ruling and to submit a proposed judgment following summary judgment for the court's review.

**8. S-CV-0051034 Martinez, Kari v. Acosta, Angelina Aka Rey-Herrera**

Motion to Compel Deposition of Defendant's Attorney Robert Gonzalez under CCP § 2025.450; and to Recuse Defense Counsel under California State Bar Rule 3.7; Sanctions Requested

Plaintiff moves to compel the deposition of defendant's attorney Robert Gonzalez. Defendant has not filed a response.

The Court of Appeal has outlined the standard for a motion to depose opposing counsel:

Depositions of opposing counsel are presumptively improper, severely restricted, and require "extremely" good cause—a high standard. (*Spectra-Physics, Inc. v. Superior Court* (1988) 198 Cal.App.3d 1487, 1493.) See *Trade Center Properties, Inc. v. Superior Court* (1960) 185 Cal.App.2d 409, 411.) There are strong policy considerations against deposing an opposing counsel. The practice runs counter to the adversarial process and to the state's public policy to "[p]revent attorneys from taking